



21 March 2023

PAN PACIFIC
HANOI

365 Travel and Investment Company Limited

Representative: Ms. Hoang Thi Mai Huong

Title: Contracting Director

Tax code: 0102126682

Address: 9th Floor, Ladeco Building, 266 Doi Can Str, Ba Dinh Dist, Ha Noi

Telephone: 024 3835 4899

Email: holy.hoang@365travel.asia

1 Thanh Nien Road, Ba Dinh Dist.

Hanoi 10000, Vietnam

Tel +84 4 3823 8888

info.pphan@panpacific.com

panpacific.com

Apple Travel and Trading Join Stock Company

Representative: Ms. Hoang Thi Mai Huong

Title: Contracting Director

Tax code: 0108146780

Address: 16th Floor, Ladeco Building, 266 Doi Can Str, Ba Dinh Dist, Ha Noi

Telephone: 024 7303 4646

Email: holy.hoang@365travel.asia

WHOLESALE FIT CONTRACT (FROM 01 JAN 2024 TO 31 DEC 2024)

Dear Ms. Huong,

Thank you for your past support to our hotel and we look forward to a continuous working relationship with you at Pan Pacific Hanoi. We are pleased to propose the following Wholesale FIT contract rates.

Wholesale Contract Rates

Hotel	PAN PACIFIC HANOI (OWNED BY WESTLAKE INTERNATIONAL CO., LTD)		
Room Type (SGL=DBL=TWN)	Valid for Worldwide Market		
	From 01 Jan 2024 To 30 Apr 2024 & From 01 Oct 2024 To 31 Dec 2024	From 01 May 2024 To 30 Sep 2024	Extra bed
Deluxe Room	3,360,000	2,880,000	1,200,000
Premier Lake View Room	3,960,000	3,480,000	1,200,000
Pacific Club Room	4,680,000	4,200,000	1,920,000
Studio Suite	5,280,000	4,800,000	1,920,000

Meal Type: Buffet	Breakfast	Lunch	Dinner
Adult (12 years old and above)	480,000	672,000	816,000
Child (06 to 11 years old)	240,000	336,000	408,000
Child (0 to 05 years old)	Free of charge	Free of charge	Free of charge

Notes

- All room rates outlined in this contract are in Vietnam Dong (VND) and inclusive of daily buffet breakfast. Rates are inclusive of applicable service charge, applicable government tax (subject to change without prior notice) and are non-commissionable.
- Rates are applicable for individual travelers from 1 – 9 rooms.
- This contract is subject to Terms and Conditions (attached) which is an integral part of the contract. It is subject to be changed as per the hotel's policy if needed and the notice will be sent to tour operators.

Value Added Benefit/ Offers**10% Early Bird Offer**

- Valid from 01 Jan 2024 to 31 Dec 2024, applicable for all bookings received 14 days prior to arrival date.

15% Discount Offer

- Valid from 01 Jan 2024 to 31 Dec 2024 applicable for all bookings with a minimum of 2 consecutive nights stay and above.

Each promotion above is valid for FIT bookings only (1-9 rooms) and inapplicable for others and extra bed rate.

Children Policy

- Children below 12 years of age can share a paid room with parents utilizing the existing bed and the breakfast is VND 240,000 net per child if requested.
- The extra bed fee will be included one breakfast per child; supplement is 600,000 VND net for deluxe room and Premier Lake View room; or 960,000 VND net for Pacific Club room and Suite Room.

Terms and Conditions

- Please see attached page for terms & conditions.
- Prepayment is required if prior credit arrangements have not been established.

To acknowledge acceptance of the proposed contract, please return a signed copy of this agreement for our records on or before the above date. Pan Pacific Hanoi agrees to the terms of this agreement as a separate entity contracting in its own capacity. Hence, you agree that should any liability arise from the hotel's performance of this agreement, such liability shall be limited to the hotel. In the meanwhile, please do not hesitate to contact us should you require any clarification.

Thank you very much for your support and we look forward to welcoming your guests.

Hotel	
Company	

Yours Sincerely,

Pan Pacific Hanoi

Accepted For and On Behalf of
365 Travel CO., LTD

Ms. Nguyen Thi Bich Diep
Assistant Director of Sales – Leisure
Date:

Name:
Title:
Date:

Accepted For and On Behalf of
Apple Travel CO., LTD

Hoang Thi Mai Huong
Contract – Product Director
Date:

Mr. Christoph Marcel Strahm
General Manager
Date:

TERMS AND CONDITIONS

A. RESERVATION PROCEDURES

1. Reservations must be confirmed in writing through the Hotel's Reservations Department. In order to obtain your contracted rate, the Operator must advise the Reservations Sales Agent that the reservation/s is to be made at the Tour Operator's contracted rate.

Reservation Contacts

Pan Pacific Hanoi	Email: reserve.pphan@panpacific.com Tel number: +84 24 3823 8888 Fax number: +84 24 3829 3888
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2. Check-in time is at 14h00 on the arrival day. For FIT/s requiring access to the room/s prior to 14h00, the room/s must be reserved from the previous night at the applicable full contract rate, unless prior arrangement/s has been made in writing with the Hotel.

Check-out time is at 12h00 on the departure day. Late check-out up to 18h00 is at the applicable half day charge and check-out after 18h00 is at the full day charge, subject to room availability unless prior arrangement/s has been made in writing with the Hotel.

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3. Cancellation/ No-show Policy - A one night's fee equivalent to the contract rate, in the event of any reservation cancelled:
 - Within 03 days of scheduled arrival for bookings from 01 to 03 rooms;
 - Within 07 days of scheduled arrival for bookings from 04 to 06 rooms;
 - Within 14 days of scheduled arrival for bookings from 07 to 09 rooms.
 - In the case of no-show, tour operator, should be responsible for payment equivalent to the whole stay and the room will be released to sell.

For cancellation made for the Early Bird Offer (EBO), one night's fee equivalent to the contract rate will be applied once the booking is confirmed.

B. PAYMENT

1. Pre-Payment - Unless prior credit arrangements have been made with the Hotel, the following will apply:
Full payment is to be made to the Hotel at least 03 days prior to arrival for bookings from 01 room to 03 rooms, at least 07 days prior to arrival for bookings from 04 rooms to 06 rooms and at least 14 days prior to arrival for bookings from 07 rooms to 09 rooms. Rooms not guaranteed by full pre-payment will be subjected to cancellation by the Hotel.
2. Credit arrangement shall subject to the approval of the Hotel, the Hotel will extend a 30-day credit term. However, this credit facility does not affect the Hotel's right in respect of the deposit and cancellation terms of the contract. The credit facility will only be applicable to FIT bookings.
3. All deposits or pre-payment shall be made either through telegraphic transfer to the account below or by way of bank draft that is acceptable for presentation at a bank in Hanoi. Telegraphic transfers shall be made to the account hereinafter specified, with a copy of the remittance advice delivered to the Hotel.

Account Name : Westlake International Company Limited
Account Number : 02-0000-370-1483 (USD)
: 020-8-00-00-00266 (VND)
Name of Bank : Public Bank Vietnam Limited- Hanoi Branch
Swift Code : VIDPVNV5
Bank Address : 1st Floor, No 2 Ngo Quyen Street,
Hoan Kiem District, Hanoi, Vietnam

If payment is made in currency other than the currency contracted, the Hotel shall reserve the right to convert the payment at such foreign exchange rate quoted by its account bank and the Tour Operator shall indemnify the Hotel against any loss arising from the conversion. All payments made under this Agreement shall be made free and clear of any withholding tax, deduction and counterclaim.

4. Invoice Arrangement - Upon departure of each guest booked by the Tour Operator, the Hotel will submit to the Tour Operator an invoice detailing the charges incurred as specified.

C. CONTRACT

1. **Contract rates** contained in this contract do not apply for conventions, meetings, exhibitions, groups, series and for internet listings. Such rates are available upon application. Should the

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contract rates contained in this agreement for FITs be sold direct to the public and not through package programs or authorized travel companies, the contract herein will be void.

2. **Distribution of Contract Rates** - Rates must be packaged with at least one other travel service such as air ticket, transportation, meals (exception of breakfast) etc. Under no circumstances should the rates and allotment quoted herein be sold directly to the consumer by the Tour Operator. The contracted rates are not to be promoted and market online via internet or other internet channels without the hotel's consent. We reserve the right to approve of such distribution and will forward the conditions for online distribution to you once notified.
3. **Confidentiality** - All information contained in this agreement is private and confidential and may not be disclosed to third parties for whatever reason or purpose.
4. **Non-Assignment of Contract** - This agreement contains the entire understanding of the parties and shall supersede any and all other prior negotiations and agreements. This agreement or any part thereof may not be assigned.
5. **Change of Ownership or Management** - The Hotel must be informed prior to any change of Ownership / Management of the Tour Operator in writing, at least 30 days prior to the effective date.
6. **Renovation Works** - The Hotel reserves the right, to close any part of its facilities and to carry out such repairs, renovation/s and upgrades to the Hotel from time to time and at any time as it deems fit in its absolute discretion. In such a case, the hotel will not be liable for any compensation whatsoever.
7. **Force Majeure** - The Hotel shall be relieved of its obligations hereunder in the event and to the extent its performance of this Agreement is delayed or prevented in whole or in part by any cause beyond its control, including, without limitation, acts of God, change of laws, war, civil unrest, fire, flood, earthquake or explosion, sale, nationalization or expropriation of the Hotel, necessary and essential construction to the Hotel, seizure of the Hotel under legal process, strikes, lockouts or work stoppages or any other circumstances beyond the control of the Hotel that makes it impossible for the Hotel to operate fully or partially.
8. **Amendment** - Notwithstanding anything in this Agreement, the Hotel may at any time and from time to time amend, vary and/or supplement the terms of the Agreement by giving at least 14 days' written notice to the Tour Operator prior to the date on which such amendment, variation and/or supplement is to take effect and such amendment, variation and/or supplement shall be valid and binding against the Tour Operator.
9. **Notification** - Unless otherwise stated in this Agreement, any notice or other communication required to be given under this Agreement shall be in writing and sent to the address and/or facsimile numbers of the recipient set out in this Agreement or such other address or facsimile numbers as the recipient may designate by notice given in accordance with the provisions of this clause. Any such notice or communication shall be deemed to have been made:
 - Within 48 hours from date of posting, if delivered by post; or
 - Immediately if successfully transmitted by facsimile.
10. **Interpretation** - The phrases "Agreement" and "Wholesale Agreement" wherever used shall refer to these Terms and Conditions and the Schedules, as the same may be amended, supplemented and/or varied from time to time.

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11. **Legal Validity** - If any provision of this Agreement or any part thereof is determined to be invalid, unlawful or unenforceable, then such provision shall be deemed to be deleted, without affecting the remaining provisions of this Agreement.
12. **Right of Termination** - This Agreement may be terminated by the Hotel immediately in the event of any breach by the client of (i) its payment obligations under this Agreement; or (ii) its other obligations under this Agreement which, if in the opinion of the Hotel is capable of remedy, is not remedied to the satisfaction of the Hotel within 30 days (or such shorter period as the Hotel may require) from the date of notice from the Hotel.
Either party may terminate this Agreement for any reason whatsoever by giving the other party 30 days' prior written notice of termination.

Upon termination of this Agreement, the client's credit arrangements (if any) shall automatically cease and all amounts due or owing by the client to the Hotel under this Agreement shall be immediately due and payable.

Any termination of this Agreement shall not prejudice any of the parties' rights or obligations that have accrued prior to termination and shall not relieve the Tour Operator's duty of confidentiality as referred to under the Confidentiality clause.

Rates are not applicable for electronic commerce transactions. These rates are not to be featured either directly or indirectly on the internet. It must also not be loaded for public viewing without prior approval from the hotel. Breach of this clause will be treated as a material breach of contract.

In the event of rate parity the Tour Operator will have to pay for the loss of revenue and any charges incurred to investigate the matter.

Should the contract rates contained in this agreement for FITs be sold directly to the public and not through package programs or authorized travel companies, the contract herein will be deemed void.

Yours Sincerely,

Pan Pacific Hanoi

Accepted For and On Behalf of
365 Travel CO., LTD

Ms. Nguyen Thi Bich Diep
Assistant Director of Sales – Leisure
Date:

Name: Hoang Thi Mai Huong
Title: Contracting Director
Date:

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Accepted For and On Behalf of
Apple Travel CO., LTD

Hoang Thi Mai Huong
Contracting Director
Date:

Mr. Christoph Marcel Strahm
General Manager
Date:

Sales Manager in charge: Nguyen Thi Bich Diep (Ms.)
Assistant Director of Sales Leisure
Email: diep.nguyen@panpacific.com

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